

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #10	CCRB Case #: 201809964	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/29/2018 7:00 PM	Location of Incident: Inside the 121 Precinct Stationhouse	18 Mo. SOL 1/13/2021	Precinct: 121		
Date/Time CV Reported Thu, 11/29/2018 8:08 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 11/29/2018 8:08 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Jacqueline Gaynor	24443	964013	121 PCT
2. SGT Steven Zielinski	02478	943988	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Jacqueline Gaynor	Abuse: Police Officer Jacqueline Gaynor did not process § 87(2)(b) s complaint regarding an officer.	A . Exonerated
B . SGT Steven Zielinski	Abuse: Sergeant Steven Zielinski did not process § 87(2)(b) s complaint regarding an officer.	B . Unsubstantiated

Case Summary

On November 29, 2018, § 87(2)(b) filed this complaint with the CCRB online.

On November 29, 2018, at approximately 7:00 p.m., § 87(2)(b) went to the 121st Precinct stationhouse to file a complaint against PO David Creely, of the 121st Precinct. Upon arrival, § 87(2)(b) stated to PO Jacqueline Gaynor, of the 121st Precinct, that she wished to file a complaint and speak to a supervisor. PO Gaynor did not process § 87(2)(b)'s complaint and instead gave her the CCRB's contact information (**Allegation A: Abuse of Authority – Refusal to process civilian complaint, exonerated**). § 87(2)(b) then spoke to Sergeant Steven Zielinski, of the 121st Precinct, and told him that she wanted to file a complaint. Sgt. Zielinski did not process § 87(2)(b)'s complaint (**Allegation B: Abuse of Authority – Refusal to process civilian complaint, unsubstantiated**).

This incident resulted in no summons or arrests. § 87(2)(g)

§ 87(2)(b) The 121st Precinct stationhouse cameras were offline and there was no other known video of the incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jacqueline Gaynor did not process § 87(2)(b)'s complaint regarding an officer.

Allegation (B) Abuse of Authority: Sergeant Steven Zielinski did not process § 87(2)(b)'s complaint regarding an officer.

It is undisputed that § 87(2)(b) went to the 121st Precinct stationhouse to speak to a supervisor; however, whether § 87(2)(b) told PO Gaynor and Sgt. Zielinski that she wanted to file the complaint in person at the stationhouse is disputed.

§ 87(2)(b) consistently stated in her online complaint, phone statement, and verified statement (**BR 01, BR 02, and BR 03**) that she went to the 121st Precinct stationhouse to file a complaint against PO Creely and speak to a supervisor. § 87(2)(b) first approached PO Gaynor, who was situated at the desk. § 87(2)(b) stated she wanted to file a complaint against an officer and PO Gaynor said, "We don't take complaints here," and told § 87(2)(b) that she needed to file her complaint with the CCRB. PO Gaynor wrote the CCRB's contact information on a piece of paper and gave it to § 87(2)(b) (**BR 04**). § 87(2)(b) told PO Gaynor that she still wanted to speak with a supervisor. § 87(2)(b) then spoke to Sgt. Zielinski and told him about her incident with PO Creely and stated she wanted to file a complaint. Sgt. Zielinski said, "We don't take complaints here," and told her that he agreed that she should file a complaint with the CCRB. Sgt. Zielinski also offered to speak to PO Creely and PO Creely's supervisor himself.

PO Gaynor stated that she was working as the telephone switchboard operator at the 121st Precinct stationhouse when § 87(2)(b) arrived (**BR 05**). § 87(2)(b) told PO Gaynor that she had just received a summons during a traffic stop and the officer who stopped her was disrespectful to her. § 87(2)(b) asked to speak to a supervisor but never asked to file a complaint at any point during the interaction. PO Gaynor suggested to § 87(2)(b) that she should contact the CCRB and file a complaint. PO Gaynor then wrote the CCRB's contact information on a piece of paper and gave that to § 87(2)(b) (**BR 04**). § 87(2)(b) took the piece of paper with the CCRB's contact information and stated that she still wanted to speak to a supervisor. PO Gaynor's supervisor, Sgt. Zielinski, was in the general vicinity and PO Gaynor informed him that § 87(2)(b) wanted to speak to him. § 87(2)(b) went to speak with Sgt. Zielinski on the other side of the desk and PO Gaynor did not hear the conversation nor did she have any other interactions with § 87(2)(b). PO Gaynor stated to the CCRB that her understanding of the procedure for civilians filing complaints against officers is to provide the civilian with the CCRB's contact information. PO Gaynor further stated that if the civilian wishes

to file the complaint in person at the stationhouse then only a supervisor is allowed to process the complaint.

Sgt. Zielinski stated that he was working as the desk sergeant when PO Gaynor informed him that § 87(2)(b) wanted to speak to him (**BR 06**). § 87(2)(b) told Sgt. Zielinski that PO Creely spoke disrespectfully toward her during a traffic stop. Sgt. Zielinski told § 87(2)(b) that he was not PO Creely's immediate supervisor, but he would speak to PO Creely about the incident. Sgt. Zielinski offered to take a complaint against PO Creely at the stationhouse, but § 87(2)(b) declined and stated she needed to leave. Sgt. Zielinski provided the CCRB's contact information to § 87(2)(b) then she left. Sgt. Zielinski stated to the CCRB that only a supervisor is able to process a civilian's complaint against a member of service, so PO Gaynor would not have been able to process a complaint unless Sgt. Zielinski designated her to take the complaint.

Patrol Guide procedure 207-31 (**BR 07**) states that complaints against uniformed members of service may be made at any patrol precinct and that the process for complaints made in person is to interview the complainant and to provide them with a civilian complaint report to fill out. A supervisor reviews and signs off on civilian complaint reports prepared by members of service.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation A** be *exonerated*.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation B** be *unsubstantiated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 08**).
- PO Gaynor has been a member of service for one year and this is the first CCRB complaint to which she has been a subject.
- Sgt. Zielinski has been a member of service for 12 years and a subject in three CCRB complaints and three allegations, one of which were substantiated.

- § 87(4-b), § 87(2)(g) [REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

- As of March 26, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (**BR 09**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date